

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

November 23, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Members of Boy Scout Troop 112 led those present in reciting the pledge of allegiance.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #14 a. was removed from the Consent Agenda. Mr. Collins moved to approve the remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON NOVEMBER 9, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON NOVEMBER 16, 2009. Motion (per Consent Agenda) carried.

Mr. Spiker moved to approve payment of vouchers as presented, including those vouchers carried over from the Nov. 16, 2009 Vouchers meeting of the governing body, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Spiker moved to divide the question to allow for a separate vote on the voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Mr. Spiker moved to approve payment of the voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Discussion followed on vouchers payable to the following: VISA/UMB, professional license dues to Wyo. Bd. of CPAs for police dept. employee, employee travel related expenses, and business lunch (food) meeting expenditure involving certain Council members and City Attorney staff; Behavioral Interventions, equipment rental fee containing sales tax; First Presbyterian Church, reimbursement for window repair; Cheyenne Light, Fuel and Power, portion of payment due involving street lights; Laramie Co. Treasurer, reimbursement due to overpayment received on specific purpose optional tax amount; Knife River, overlay expense for VA parking lot in conjunction with Henderson Flood Control project, and Verizon Wireless, cell phone charges listed for Parks & Recreation Dept. During discussion on the business lunch meeting expense (payable to VISA/UMB), Ms. Broyles indicated her name was listed in the voucher explanation and clarified that she was not a participant in the meeting

and that her name should be removed with Mayor Kaysen stating her comment would be noted. Responding to inquiries and providing information available on the aforementioned vouchers during discussion were: Barb Dorr, City Treasurer; Lt. Mark Munari, Police Dept., Doug Vetter, City Engineer, and Mayor Kaysen. Motion to approve remaining vouchers as presented carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE REPEALING SECTION 9.08.030, GAMBLING-PROHIBITED-EXCEPTIONS, AND SECTION 9.08.040, VIOLATIONS BY OWNER OR OCCUPANT OF PREMISES WHERE GAMBLING CONDUCTED, OF TITLE 9, PUBLIC PEACE AND WELFARE, CHAPTER 9.08, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, OF THE CHEYENNE CITY CODE” – referred to Public Services Committee (due to postponement from Sept. 14, 2009).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF LOTS 6-17, AND VACATED 16' ALLEY, BLOCK 405, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO W. LINCOLNWAY, EAST OF STINSON AVENUE).” Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING A PORTION OF THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE PERTAINING TO THE RECYCLE RESIDENTIAL COLLECTION MONTHLY FEE, AS APPROVED BY ORDINANCE NO. 3851 ON JUNE 8, 2009.” Reporting for Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Mr. Collins. Mr. Valdez moved to postpone to Dec. 14, 2009, seconded by Ms. Broyles. Discussion followed on the purpose of postponement. Upon inquiry Jim Elias, Public Works Director, advised information is being compiled by staff on recycling program operational costs, and advised a substitute ordinance has been prepared due to additional discussions on the monthly recycling fee. Motion to postpone failed. Voting “no” – all members of the governing body. Mr. Collins moved to amend by substitute ordinance, seconded by Mr. Brown. Mr. Elias explained the substitute removes wording related to a discounted fee based on residential water usage as proposed in the initial ordinance, and provides options for use of smaller recycling containers, every other week pickup service that would be available to residences and churches, and a 95 gallon container commercial collection monthly fee. He further explained 95 vs. 60 gallon containers that would be available; that residents’ “opt out” to decline a container would still involve a monthly fee based on the resident’s current sanitation container size being utilized, and that the overall intent of the program is to encourage recycling efforts to reduce the amount of materials being disposed of in the landfill. Discussion included written comments and questions on the recycling program and current monthly fee as presented and submitted by Don Erickson during the Finance Committee meeting; current economy and effect on operational costs relative to the recycling market and program costs; staff information on services, equipment and costs being researched and compiled; overall program master plan; usage of recycling blue bins located throughout the City and collection, transporting and disposal costs; fairness issues involving different sized households; container sizes; mandatory fee relative to financial burdens for those on fixed incomes; current tipping fees for transporting solid waste to the Colorado outlet, and single stream recycling programs involving a fee vs. voluntary recycling efforts. Mr. Pierson moved to amend the proposed substitute by revising the following fee areas, seconded by Mr. Valdez: Private Residences and Churches Every Other Week

Services – Recycle residential collection monthly fee (60 gallon container) from \$3.00 to \$2.00; combination 60 gallon trash/60 gallon recycle containers from \$16.00 to \$15.00, and combination 60 gallon trash/95 gallon recycle containers from \$18.00 to \$17.00. Discussion on the proposed amendment followed and included initial fees for the curbside recycling pilot program in the Sun Valley area, and input from Mr. Elias concerning the proposed change in fee amount affiliated with the 60 gallon trash/95 gallon recycle containers. Pursuant to Mr. Elias' comments, Mr. Pierson corrected his previous motion to amend to exclude the proposed change to the combination 60 gallon trash/95 gallon recycle containers amount, with concurrence by Mr. Valdez as second to the motion. Comments continued on recycle container sizes; program costs being compiled by Public Works staff; comprehensive recycle plan; budget expenses for program operations vs. cost of service, and revenue stream affiliated with continuation of a recycling program. Motion to amend the substitute carried. Voting "yes" – Ms. Broyles, Ms. Case, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting "no" – Ms. Ash, Mr. Brown, Mr. Collins and Dr. Rinne. Discussion followed on the structure of the ordinance relative to the order in which the fee areas were listed (it was noted that pursuant to the amendment, the listing order of amounts would be revised); number of 60 gallon recycle containers currently available and acquisition of additional containers; benefits of a curbside recycling program; past and future educational efforts to inform the public of program components, and level of interest from commercial businesses in participating in the container program. Motion to amend by substitute, as amended, carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no." Request was made that more green bins be placed throughout the community. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no."

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY COUNCIL TO CONDUCT A MEETING WITH THE BOARD OF DIRECTORS OF THE DOWNTOWN DEVELOPMENT AUTHORITY AND OTHER INTERESTED PARTIES TO DISCUSS FUTURE DEVELOPMENT NEEDS OF THE GREATER CHEYENNE DOWNTOWN AREA." Mr. Brown moved to adopt, seconded by Ms. Case. Discussion included allowing transition time for the DDA Board to complete its process in selecting a new director and acclimating new members recently appointed to the Board; recent failure of the DDA District mill levy special election ballot question; input by the governing body to the new director and DDA Board members of expectations and communications, and DDA goals. Mr. Pierson moved to amend to add the following sentence at the end of the Now Therefore Be It Resolved clause, seconded by Mr. Spiker: This meeting shall take place after a new DDA director is employed and working for 60 days or more and, therefore, becoming accustomed to their job duties and current situations. Comments in support and non-support of the proposed amendment followed. Motion to amend carried. Voting "yes" – Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting "no" – Ms. Ash, Ms. Case and Mr. Brown. Ms. Broyles moved to amend the same clause within the Resolution by inserting the words "and managers" following the word "owners", seconded by Mr. Pierson. Discussion on the proposed amendment followed and included the scope of the Resolution; involvement by DDA District stakeholders on issues affecting managers of businesses in which owners of the business properties are non-local; stakeholder communication issues, and that the holding of a public meeting would include the opportunity for business managers within the District to attend without requiring a change to Resolution wording. Motion to amend carried. Voting "yes" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Voting "no" – Ms. Ash, Ms. Case and Mr. Valdez. Following further comments on voter turnout and dissemination of information connected with the recent DDA District special election, motion to adopt as twice amended failed. Voting "yes" – Ms.

Broyles, Ms. Case, Mr. Pierson and Mr. Valdez. Voting “no” – Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne, Mr. Spiker and Mayor Kaysen.

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Contract between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services, for grant funding for Intensive Support Mentoring for youth in the Municipal Court System – referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Change Order No. 1 to Bid #R-31-08 between the City of Cheyenne and Kubat Equipment and Service Co. for additional work needed to complete installation of the above ground vaulted tank and fueling system for the Parks Maintenance Building, located at 4500 Dell Range Blvd. (2003-2006 1% Sales Tax). Mr. Valdez moved to approve in the amount of \$1,895.00, seconded by Ms. Ash. Discussion included timeliness of payments to contractors and, upon inquiry, project information from Sara Vasquez, Assistant Purchasing Director.

Contract Modification No. 2 to Contract No. 5357 between the City of Cheyenne and S&S Builders, LLC for additional services for the Carey Avenue Extension Project (2007-2010 1% Sales Tax). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Valdez moved to approve in the amount of \$32,447.28, seconded by Mr. Pierson. Upon inquiry, Sara Vasquez, Assistant Purchasing Director, confirmed payment had already been made to the contractor but payment of retainage had not yet been released, and Doug Vetter, City Engineer, provided information on the work that was needed in the final stages of the project due to unforeseen conditions, and the use of force accounts. Discussion included the following topics: Timeliness of contract modifications submitted for approval; concern with force account funds; administrative communications involving City Council and notification of timely and/or emergency-type contract modifications, and current economic conditions, project costs and budgetary concerns. During discussion Barb Dorr, City Treasurer, provided the amount of funding balance of the street renovation 1% sales tax fund, noting an additional amount will be included in the next fiscal year budget due to ongoing sales tax collections, and Mr. Vetter indicated staff is formulating plans and designs for next fiscal year’s overlay program. Motion carried. Voting “yes” – Ms. Ash, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Valdez and Mayor Kaysen. Voting “no” – Mr. Brown, Dr. Rinne and Mr. Spiker. Mayor Kaysen advised he has been communicating with staff to evaluate practices and procedures involving contract modifications, and that a project tracking form has been developed to share as a communication tool with City Council members.

[CA] Contract Modification No. 2 to Contract No. 5316 between the City of Cheyenne and J2 Contracting for additional materials and labor for construction of David R. Romero South Cheyenne Community Park (State Loan & Investment Board) – referred to Finance Committee.

[CA] Contract Modification No. 3 to Bid No. M-5-09 between the City of Cheyenne and RECCO, Inc. d/b/a Five-R-Co. for additional work and amenities for the Cheyenne Youth Activity and Community Center (2007-2010 1% Sales Tax) – referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-12-10 for a contract between the City of Cheyenne and Aztec Construction Co., Inc., of Cheyenne, for the Transfer Station Fire Main Loop Project (State Loan & Investment Board). Mr. Valdez moved to accept the bid in an amount not to exceed \$113,724.00, seconded by Ms. Ash. Comments followed on SLIB projects and funding information to be provided by the administration. Mr. Collins moved to postpone to Dec. 14, 2009, seconded by Mr. Brown. Upon inquiry, Jim Elias, Public Works Director, advised the potential postponement should not affect project timing. Motion to postpone carried. Voting “yes” – all members of the governing body.

[CA] Consideration of Bid #R- 4-10 for the surplus sale of one Deery Mastic Mixer to include eight pallets of hot applied mastic patching material utilized by the Public Works Department to Vance Brothers, Inc. of Aurora, CO. Motion (per Consent Agenda) to reject the sole bid received carried.

ANNOUNCEMENTS/REPORTS/MOTIONS

[CA] Authorizing the City of Cheyenne, Golf Division, to purchase from C&M Golf and Grounds Equipment of Denver, CO, one Front Deck Mower to replace mower currently used at Prairie View Golf Course – referred to Finance Committee.

Announcement was made of the Reappointment of John Goodier and Jerry Crader to the Art in Public Places Committee; Randy Byers and Robert Clary to the Building Code Board of Appeals; Mark Archer, Marvin Gertsch and Noel Griffith Jr. to the Contractor Licensing Board; Ronald Duckworth to the Historic Preservation Board; and Stephen Ganison, Lily Clabots, and Carol Slane to the Housing & Community Development Advisory Council, to be confirmed Dec. 14, 2009.

Announcement was made of the Appointment of Steve Rodriguez to the Art in Public Places Committee; Michael Peel to the Building Code Board of Appeals; Kevin Paintner to the Cheyenne Regional Airport Board; Lisa O’Sullivan, Kelly Weidlich, and James Rose to the Historic Preservation Board; Jason Mitchell, Norman Jepson, and Khale Lenhart to the Housing & Community Development Advisory Council; and Janet Tilton and Jeff Rayment to the Board of Adjustment, to be confirmed Dec. 14, 2009.

Under other City business and upon inquiry, Barb Dorr, City Treasurer, provided information on the status of mortgage backed securities which are part of the City’s investment portfolio.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:13 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 3, 2009